

**BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA**

**STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,
Petitioner,**

vs.

**GAIL CATO-STRONG,
LPC, LICENSE NO. 6790
Respondent.**

Complaint No. 2024-LPC-519

FINDINGS OF FACT, CONCLUSIONS OF LAW AND FINAL ORDER

This matter came on for hearing before the State Board of Behavioral Health Licensure (“the Board”) on August 8, 2024, at Oklahoma Office of Attorney General, 313 N.E. 21st Street, Henry Nesbitt – CR 1012, Oklahoma City, Oklahoma, pursuant to notice given as required by law and rules of the Board.

Liz Stevens, Assistant Attorney General, appeared on behalf of Petitioner. Respondent appeared in person and pro se. Ms. Stevens for Petitioner and Respondent are hereinafter referred to as the Parties.

The following exhibits were admitted into evidence.

Petitioner’s Exhibit 1: Judgment and Sentence, filed June 13, 2024 (certified copy) *State of Oklahoma vs. Gail Renee Cato-Strong* In the District Court of Oklahoma County, State of Oklahoma Case No. CF-2021-807.

Respondent’s Exhibit 1: Documents purportedly used as evidence in *State of Oklahoma vs. Gail Renee Cato-Strong* In the District court of Oklahoma County, State of Oklahoma Case No. CF-2021-807.

The following witness was sworn in and testified: Gail Cato-Strong.

The Parties gave opening statements and then presented their cases, starting with the Petitioner. Petitioner objected to Respondent’s exhibit based on relevancy. The Parties then gave closing statements.

Following closing arguments by the Parties the Board entered into executive session to engage in deliberations, in accordance with 25 O.S. § 307(B)(8) and 75 O.S. § 309(D).

The Board, having considered representation of counsel, testimony of the witnesses, exhibits admitted into evidence, and being fully apprised of the premises, makes the following findings of fact, conclusions of law and orders:

FINDINGS OF FACT

1. Petitioner is a state agency with jurisdictional authority to regulate Licensed Professional Counselors, pursuant to 59 O.S. §§ 1901, *et seq.*
2. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 6790, and was licensed on or about April 13, 2018.
3. On December 8, 2023, Respondent was convicted by a jury of one (1) count of Medicaid Fraud in violation of 56 O.S. § 1005(A)(1) and one (1) count of Identity Theft in violation of 21 O.S. 1533.1(B), Oklahoma County case number CF-2021-807.
4. Respondent was sentenced to a fine of ten thousand dollars (\$10,000) for each count along with restitution and fees.
5. The Respondent's conduct violated the Oklahoma Licensed Professional Counselors Act, and the applicable Oklahoma Administrative Rules.

CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. § 1905(B)(4) of the Licensed Professional Counselors Act.
2. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has been convicted of a felony. 59 O.S. § 1912(A)(1).
3. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged in fraud or deceit in connection with services rendered or in establishing needed qualifications. 59 O.S. § 1912(A)(2).
4. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has engaged in unprofessional conduct as defined by the rules established by the Board. 59 O.S. § 1912(A)(4).
5. The Board may deny, revoke, suspend, or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act

to a licensed professional counselor, if the person has engaged negligence or wrongful actions in the performance of his or her duties. 59 O.S. § 1912(A)(5).

6. Any person determined by the Board to have violated any provision of the Licensed Professional Counselors Act or any Rule related to licensed professional counseling, may be subject to an administrative penalty, not to exceed \$10,000 for any related series of violations, pursuant to 50 O.S. § 1913.1 and OAC 86:10-29-14.
7. The Board found that the Petitioner has proven by clear and convincing evidence that the Respondent's convictions of one (1) count of Medicaid Fraud and one (1) count of Identity Theft shows that the Respondent is guilty of each of the violations described in the Complaint, as follows:
 - a. The Respondent was convicted of a felony. 59 O.S. § 1912(A)(1).
 - b. The Respondent engaged in fraud or deceit in connection with services rendered. 59 O.S. § 1912(A)(2).
 - c. The Respondent engaged in unprofessional conduct as defined by the rules established by the Board. 59 O.S. § 1912(A)(4).
 - d. The Respondent engaged in negligent or wrongful actions in the performance of her duties. 59 O.S. § 1912(A)(5).
 - e. The Respondent violated OAC 86:10-3-1, which provides that Licensed Professional Counselors shall not participate in, condone, or be associated with dishonesty, fraud, deceit, or misrepresentation.

ORDER

IT IS THEREFORE ORDERED by the State Board of Behavioral Health Licensure as follows:

1. The Professional Counselor license of Gail Cato-Strong, license no. 6790 is hereby REVOKED.
2. An Administrative Fine of Two Thousand Five Hundred Dollars (\$2,500) is hereby assessed.
3. Respondent may immediately reapply for licensure should her convictions in *State of Oklahoma vs. Gail Renee Cato-Strong* In the District Court of Oklahoma County, State of Oklahoma Case No. CF-2021-807, be overturned.

Dates this 10th day of September, 2024.


Dr. Kelly Collins, Board Chair
State Board of Behavioral Health Licensure

Certificate of Service

This is to certify that on the __10__ day of ____September____, 2024, the foregoing instrument was transmitted as indicated, postage prepaid, to the following:

U.S. Certified Mail return receipt requested

Gail Cato-Strong
3310 N 23rd W Ave
Tulsa, Oklahoma 74127
Respondent



Eric Ashmore, Executive Director